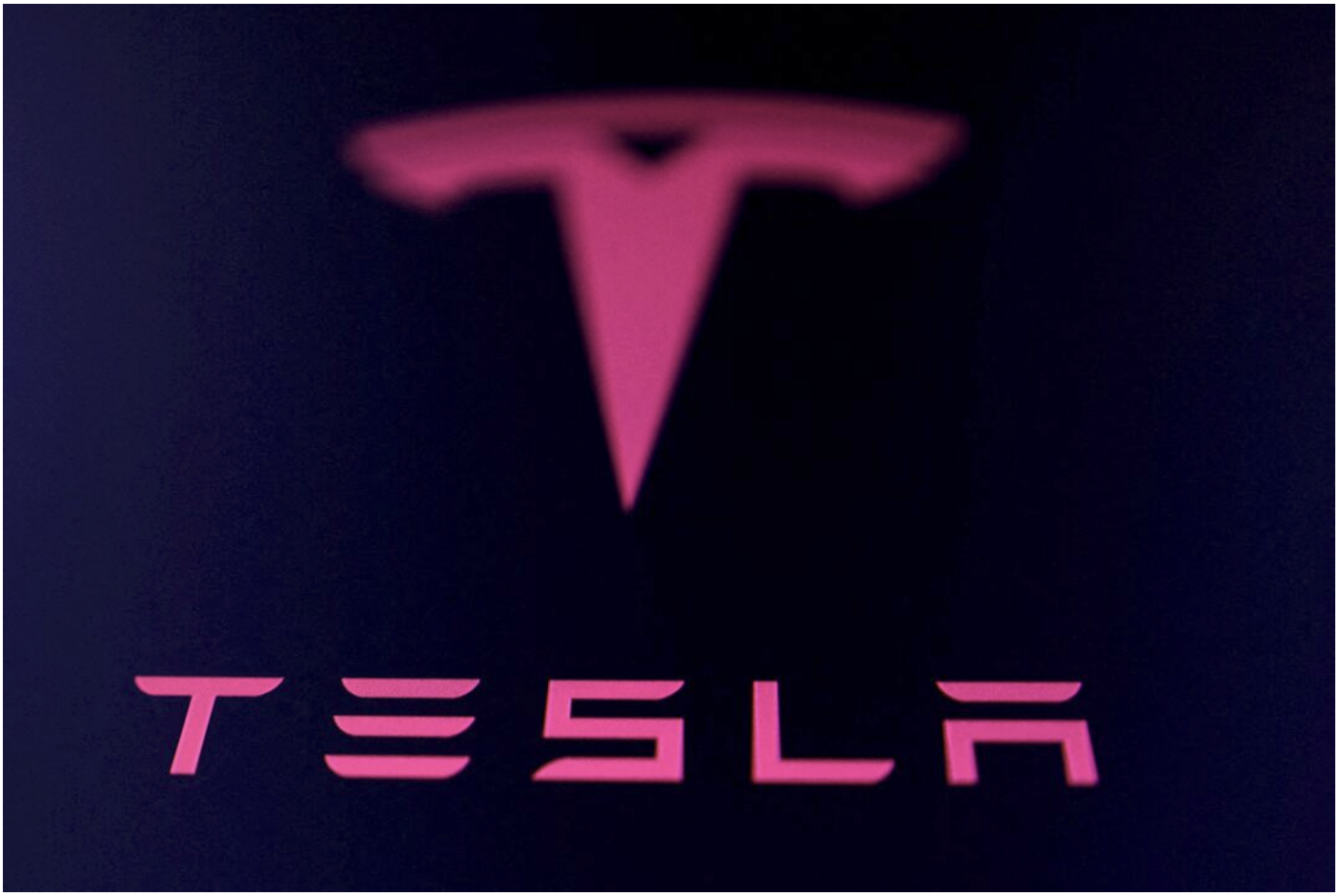
Tesla ordered by Florida jury to pay $243 million in fatal Autopilot crash

By Jonathan Stempel and Abhirup Roy

August 2, 2025 12:48 AM GMT+2 · Updated August 2, 2025



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Summary Companies

- Verdict could lead to more lawsuits, experts say
- One died, one injured in Model S crash in 2019
- Tesla to appeal, blames driver
- Tesla shares down 1.8% on Friday, 25% this year

Aug 1 (Reuters) - A Florida jury on Friday found Tesla (TSLA.O) liable to pay $243 million to victims of a 2019 fatal crash of an Autopilot-equipped Model S, a verdict that could encourage more legal action against Elon Musk's electric vehicle company.

The verdict is a rare win for victims of accidents involving Autopilot. Musk has been pushing to rapidly expand Tesla's recently launched robotaxi business based on an advanced version of its driver assistance software.

Tesla shares fell 1.8% on Friday, and are down 25% this year.

Jurors in Miami federal court awarded the estate of Naibel Benavides Leon, as well as her former boyfriend Dillon Angulo, $129 million in compensatory damages plus $200 million in punitive damages, according to a verdict sheet.

Tesla was held liable for 33% of the compensatory damages, or $42.6 million.

Jurors found the driver George McGee liable for 67%, but he was not a defendant and will not have to pay his share.

"Tesla designed Autopilot only for controlled-access highways yet deliberately chose not to restrict drivers from using it elsewhere, alongside Elon Musk telling the world Autopilot drove better than humans," Brett Schreiber, a lawyer for the plaintiffs, said in a statement.

"Today's verdict represents justice for Naibel's tragic death and Dillon's lifelong injuries," he added.

Tesla said it will appeal.

"Today's verdict is wrong and only works to set back automotive safety and jeopardize Tesla's and the entire industry's efforts to develop and implement life-saving technology," the company said.

The plaintiffs had sought $345 million of damages. Their lawyers said the trial was the first involving the wrongful death of a third party resulting from Autopilot.

IMPACT ON FUTURE CASES

Tesla has faced many similar lawsuits over its vehicles' self-driving capabilities, but they have been resolved or dismissed without getting to trial.

In June, a judge rejected Tesla's bid to dismiss the Florida case. Experts said Friday's verdict may spur more lawsuits, and could make future settlements more costly.

"It's a big deal," said Alex Lemann, a law professor at Marquette University. "This is the first time that Tesla has been hit with a judgment in one of the many, many fatalities that have happened as a result of its Autopilot technology."

The verdict could also impede efforts by Musk, the world's richest person, to convince investors that Tesla can become a leader in so-called autonomous driving for private vehicles as well as robotaxis it plans to start producing next year.

As Tesla's electric vehicle sales fall, much of its nearly $1 trillion market value hinges on Musk's ability to pivot the company into robotics and artificial intelligence.

DRIVER'S ROLE

The trial concerned an April 25, 2019 incident where George McGee drove his 2019 Model S at about 62 mph (100 kph) through an intersection into the victims' parked Chevrolet Tahoe as they were standing beside it on a shoulder.

McGee had reached down to pick up a cellphone he dropped on his car's floorboard and allegedly received no alerts as he ran a stop sign and stop light before hitting the victims' SUV.

Benavides Leon was allegedly thrown 75 feet (23 meters) to her death, while Angulo suffered serious injuries.

"We have a driver who was acting less than perfectly, and yet the jury still found Tesla contributed to the crash," said Philip Koopman, a Carnegie Mellon University engineering professor and expert in autonomous technology.

"The only way the jury could have possibly ruled against Tesla was by finding a defect with the Autopilot software," he added. "That's a big deal."

Tesla, in its statement, said McGee was entirely at fault.

"To be clear, no car in 2019, and none today, would have prevented this crash," the company said. "This was never about Autopilot; it was a fiction concocted by plaintiffs' lawyers blaming the car when the driver - from day one - admitted and accepted responsibility."

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